

25STCV15982 25STCV15982

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-21

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Case Number: 25STCV15982 Hearing Date: August 21, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BRIGHTON

COLLECTIBLES, LLC,

Plaintiff,

vs.

NATALIE

HOCKEY, et al.,

Defendants.

Case No.:

25STCV15982

Hearing

Date:

August 21,

2026

ORDER GRANTING DEFENDANT'S special motion to strike
(ANTI-SLAPP MOTION)

I. BACKGROUND

Defendant

Natalie Hockey ("Hockey"), via counsel Defendants Joseph H. Low IV ("Low"), Timothy A. Hall ("Hall"), John Matheny ("Matheny"), Roger Y. Muse ("Muse"), Excelsior Law Group ("Excelsior"), and The Law Firm of Joseph H. Low IV, Inc. ("Low Firm") filed suit against Plaintiff Brighton Collectibles ("Brighton") for waiting time penalties after Brighton paid a third-party to pay Hockey, rather than pay Hockey directly. Hockey later dismissed the action against Brighton. Brighton sued Defendants for malicious prosecution in Hockey's initial suit.

On

September 2, 2025, Low and Low Firm (collectively "Moving Defendants") filed the instant special motion to strike (or "anti-SLAPP motion") under Code of Civil Procedure section 425.16.[1] Brighton filed an opposition. Moving Defendants filed a reply.

II. REQUEST FOR JUDICIAL NOTICE

Moving

Defendants request that the Court take judicial notice of certain documents. As to those requests, the Court GRANTS the request for judicial notice as to all documents.

III. EVIDENTIARY OBJECTIONS

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special motion to strike under CCP section 425.16 uses a "summary-judgment-like procedure" and follows the same rules as CCP section 437c in that the evidence relied upon in the supporting or opposing papers must be admissible. (Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co. (2019) 6 Cal. 5th 931, 945; see also Tuchscher Dev. Enters., Inc. v. San Diego Unified Port Dist. (2003) 106 Cal. App. 4th 1219, 1237.)

"Authentication of a writing is required before it may be received in evidence." (Evid. Code, § 1401, subd. (a).) "Authentication of a

writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law [Citations]... .” (Jacobson v. Gourley (2000) 83 Cal. App. 4th 1331, 1334.)

A. Moving

Defendants’ Objections

The Court rules on Moving Defendants’ objections to Brighton’s evidence as follows:

1.

Kaufman Decl., ¶ 4, lines 24-25 is

SUSTAINED as to lack of foundation, primary evidence rule.

2.

Kaufman Decl., ¶ 6, lines 8-10 is OVERRULED.

3.

Kaufman Decl., ¶ 7, lines 15-20 is OVERRULED.

4.

Kaufman Decl. ¶ 8, lines 1-4 is SUSTAINED

as irrelevant, argumentative, improper opinion.

5.

Kaufman Decl., ¶ 9 is OVERRULED.

IV. LEGAL STANDARD

“Litigation of an anti-SLAPP motion involves

a two-step process. First, ‘the moving defendant bears the burden of

establishing that the challenged allegations or claims ‘aris[e] from’ protected

activity in which the defendant has engaged.’ [Citation.] Second, for each

claim that does arise from protected activity, the plaintiff must show the

claim has “at least ‘minimal merit.’ [Citation.]” (Bonni v. St. Joseph Health System

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source of the dispute from those that merely provide evidence of it, courts ask

whether “the same dispute would exist” if there were no pending threat of

litigation. (Gotterba v. Travolta

(2014) 228 Cal.App.4th 35, 42.)

As to the second step of the inquiry, a plaintiff seeking to demonstrate the merit of the claim “may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.” (Sweetwater Union High School District v. Gilbane Building Co. (2019) 6 Cal.5th 931, 940, citations omitted.)

A party opposing a special motion to strike has the burden to “state [] and substantiate [] a legally sufficient claim.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 88 & 93.) “Put another way, the party “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the defendant is credited.” [Citations.]” (Id. at pgs. 88-89.) To that end, the party must present competent evidence, “that would be admissible at trial.” (HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212.) “[D]eclarations may not be based upon ‘information and belief’ [citation]” and documents submitted without the proper foundation will not be considered. (Id.) The complaint, even if verified, is insufficient to carry the plaintiff’s shifted burden. (Roberts v. Los Angeles County Bar Association (2003) 105 Cal.App.4th 604, 614; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 354 [“pleadings do not constitute evidence”]; see also Burke, Anti-SLAPP Litigation (The Rutter Group, Civil Litigation Series 2018 §5:13) [“To satisfy prong two, the plaintiff must submit admissible evidence that if credited is sufficient to sustain a favorable judgment against the legal theories asserted by the defendant.”].)

“A cause of action is subject to a special motion to strike if the defendant shows that the cause of action arises from an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue and the plaintiff fails to demonstrate a probability of prevailing on the claim. [Citations.]” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 883.)

“An ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ is defined by statute to include ‘(1) any

written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.' [Citation.] If the defendant shows that the cause of action arises from a statement described in clause (1) or (2) of section 425.16, subdivision (e), the defendant is not required to separately demonstrate that the statement was made in connection with a 'public issue.' [Citation.]" (Id.)

"A cause of action is one 'arising from' protected activity within the meaning of section 425.16, subdivision (b)(1) only if the defendant's act on which the cause of action is based was an act in furtherance of the defendant's constitutional right of petition or free speech in connection with a public issue. [Citation.] In deciding whether the 'arising from' requirement is satisfied, 'the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.' [(Code Civ. Proc.. § 425.16(b)(2).)] Whether the 'arising from' requirement is satisfied depends on the 'gravamen or principal thrust' of the claim. [(Episcopal Church Cases (2009) 45 Cal.4th 467, 477, quoting Martinez v. Metabolife International, Inc. (2003) 113 Cal.App.4th 181, 193.)] A cause of action does not arise from protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action. [(Martinez, 113 Cal.App.4th at pg. 188.)]" (Digerati Holdings, LLC, 194 Cal.App.4th at pgs. 883-884.) To show that a claim arises from protected activity under §425.16(b)(1), it is not sufficient to show that the claim "was filed after, or because of, protected activity, or when protected activity merely provides evidentiary support or context for the claim." (Rand Resources, LLC v. City of Carson (2019) 6 Cal.5th 610, 621.) "Rather, the protected activity must 'supply elements of the challenged claim.' [Citation.]" (Id., citations omitted.)

"At the first step, the moving defendant

bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 396, emphasis added.)

V. DISCUSSION

Moving

Defendants request the Court

strike the sole cause of action for malicious prosecution as it arises from Moving

Defendants’ protected exercise

of free-speech rights. Pursuant to section 425.16, subdivision (b), a cause of

action against a person arising from the person’s right of petition or free

speech shall be subject to a special motion to strike unless the court

determines the plaintiff has established there is a probability the plaintiff

will prevail on the claim.

A. Statement of Facts

This action concerns

Hockey’s previous claim against Brighton, brought with the assistance of

counsel Defendants. The underlying complaint, filed December 16, 2019, alleged on

October 4, 2018, Brighton employed Hockey as a model for a photography shoot at

a rate of \$3,000.00 per day via Hockey’s modeling agency, LA Models. (Mot., JN

Ex. 5.) Brighton issued payment to LA Models and Hockey was paid the \$3,000.00

more than 30 days later via the agency. (Ibid.) Hockey alleged, pursuant

to Labor Code 201, subdivision (a), Hockey was entitled to be paid her wages

immediately upon discharge, as opposed to the reality of waiting more than 30

days for payment. (Ibid.) Hockey’s complaint alleged the failure to pay

was willful and warranted waiting time penalties in the amount of \$90,000.00,

pursuant to Labor Code 203. (Ibid.) Moving Defendants associated in as

counsel for Hockey on March 23, 2020. (Mot., Low Decl. ¶ 3, Ex. 1.)

On March 2, 2020, Brighton filed a

cross-complaint against Hockey for declaratory relief and fraud. (Mot., JN Ex.

6.) On April 29, 2020, Hockey filed an anti-SLAPP motion to Brighton’s

cross-complaint; the trial court granted the anti-SLAPP motion. (Mot., JN Ex.

7-8.) Brighton appealed the court’s ruling; on September 20, 2021, the Court of

appeal reversed the anti-SLAPP motion, finding Brighton’s fraud cause of action

had the requisite minimal merit. (Mot., JN Ex. 12.)

On October 10, 2023, Brighton filed a motion for summary judgment as to Hockey's underlying complaint. (Mot., JN Ex. 13.) Prior to the hearing on the motion for summary judgment, on December 4, 2023, Hockey voluntarily dismissed her complaint against Brighton, without prejudice. (Mot., JN Ex. 14.) Brighton subsequently dismissed his cross-complaint.

B. Protected Activity

Moving Defendants assert Moving Defendants' activity as to the claim for malicious prosecution is protected, satisfying the first prong of an anti-SLAPP motion, as the claim entirely concerns Moving Defendants' actions in regard to Hockey's previous suit against Brighton.

The Anti-SLAPP statute defines relevant protected activity as follows:

“(1)

any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (§ 425.16, subd. (e).)

Moving Defendants asserts the alleged activity is protected as it concerns actions in underlying litigation, satisfying section 425.16, subdivision (e)(1)-(2). The Court agrees. “By definition, a malicious prosecution suit alleges that the defendant committed a tort by filing a lawsuit...[a]ccordingly, every Court of Appeal that has addressed the question has concluded that malicious prosecution causes of action fall within the purview of the anti-SLAPP statute.” (Jarrow Formulas, Inc. v. LaMarche (2003) 31 Cal.4th 728, 735; internal citations omitted.)

Brighton does not contest Moving Defendants'

actions are considered protected activity under section 425.16. Therefore, Moving Defendants has met his initial burden of showing the activity satisfies the first prong of section 425.16. The burden to demonstrate the probability of prevailing on these causes of action shifts to Doe.

C. Probability of Prevailing

Under the second prong of the anti-SLAPP analysis, Brighton has the shifted burden of establishing a probability of prevailing on the cause of action for malicious prosecution. (§ 425.16, subd. (b)(3).) A plaintiff "cannot simply rely on his or her pleadings, even if verified," but must submit "competent, admissible evidence." (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 480; see also *Morrow v. Los Angeles Unified School District* (2007) 149 Cal.App.4th 1424, 1444.) In evaluating the parties' submissions, the Court considers the pleadings and admissible evidence presented by both sides, without weighing credibility, and must grant the motion "if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim." (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal. 4th 811, 821 [emphasis original].) The question is whether the plaintiff has presented evidence in opposition to the defendant's motion that, if believed by the trier of fact, is sufficient to support a judgment in the plaintiff's favor. (*Zamos v. Stroud* (2004) 32 Cal.4th 958, 965.)

"To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff's, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice [citations].'" (*Lanz v. Goldstone* (2015) 243 Cal.App.4th 441, 458 (quoting *Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50).)

1. Commencement and Termination

It is undisputed that Moving Defendants, as Hockey's attorneys, associated in and pursued the underlying action to termination, in Brighton's favor, upon Hockey requesting the Court

dismiss her claims. Malicious prosecution may also include the act of “continuing to prosecute a lawsuit discovered to lack probable cause,” not just commencement. (Zamos v. Stroud (2004) 32 Cal.4th 958, 973.) Therefore, this element has been met.

2. Probable Cause

Moving Defendants argue Brighton cannot establish a lack of probable cause in Moving Defendants bringing a claim for waiting time penalties against Brighton. “Probable cause is a low threshold designed to protect a litigant’s right to assert arguable legal claims even if the claims are extremely unlikely to succeed.” (Plumley v. Mockett (2008) 164 Cal.App.4th 1031, 1047.) “ ‘The benchmark for [probable cause] is whether any reasonable attorney would have thought the claim was tenable.’ ” (Oviedo v. Windsor Twelve Properties, LLC (2012) 212 Cal.App.4th 97, 114.) “ ‘The facts to be analyzed for probable cause are those known to the defendant [in the malicious prosecution action] at the time the underlying action was filed.’ ” (Walsh v. Bronson (1988) 200 Cal.App.3d 259, 264.)

Moving Defendants allege that, at all times, Moving Defendants believed Hockey had a ‘colorable’ claim under various Labor Code sections, as Moving Defendants believed Hockey to be an employee of Brighton that was not paid in a timely fashion. Pursuant to Labor Code section 201, upon discharge of an employee, an employee is entitled to payment of all wages due. If an employer willfully fails to pay these wages, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action is commenced, but not for more than 30 days. (Labor Code § 203.) These sections could not be contravened by private agreement. (Labor Code § 219, subd. (a).)

It is undisputed Brighton did not pay Hockey directly immediately after the photoshoot. However, Brighton asserted Hockey, via the agreement between LA Models and Brighton, directed Brighton to pay LA Models; LA Models allegedly issued payment approximately a month later, pursuant to contract. Both case law and statute present potential issues with Brighton’s method of payment, regardless of any industry standard or outside agreement. (See Zaremba v. Miller (1980) 113 Cal.App.3d Supp. 1, 6 [concluding “Labor Code provisions [200, 201, and 203] express a strong public policy for prompt payment of laborers that may not be undercut by any industry habit or custom to the contrary” and reversing trial court].) LA

Models also did not agree with Brighton's characterization of the agreement, as their invoice stated payment was due upon completion of the job.

Parties also disputed whether Hockey was an employee for purposes of the Labor Code. (Mot., JN Ex. 10.) Moving Defendants believed Brighton exercised sufficient control over Hockey's actions on the day in question to establish Hockey as Brighton's employee. Zaremba itself established, under certain circumstances, models may be considered employees rather than independent contractors, entitled to immediate payment upon termination. (Zaremba, *supra*, 113 Cal.App.3d Supp. at p. 5.) The Court finds, based upon the information and case law available at the time of filing Brighton's complaint, Moving Defendants met the low threshold for probable cause.

Brighton argues, however, Moving Defendants continuing to pursue the subject action after the publication of case law allegedly undermining Hockey's case was done without probable cause. On April 22, 2022, the Ninth Circuit published *Hill v. Walmart Inc.* (2022) 32 F.4th 811, in which the appellate court held a defendant who, in good faith, reasonably believed a model to not be an employee was not obligated to make immediate payment to a model upon termination or face waiting time penalties. (Id. at 814.) On July 11, 2023, Hockey's counsel e-mailed Brighton's counsel, stating they intended to dismiss the action in light of the recent *Hill* decision:

"Although that decision is not binding on the court in this matter, we recognize that the court in this case may very well follow the 9th Circuit's holding 1) applying the Borello standard to the determination of employment status in this case rather than the definitions of employment stated in the Martinez decision (which we continue to contend is the applicable employment-determination standard in this case) and 2) applying a subjective standard to the determination of willfulness under Labor Code section 203 with reference to the Borello standard."

(Opp., Stiglitz Decl. ¶ 3, Ex. 2.) Despite asserting in July 2023 that Hockey intended to dismiss her claims, no dismissal was filed. Only after Brighton filed a motion for summary judgment did Hockey actually move to dismiss her claims.

As noted in Moving Defendants' reply and Hockey's counsel's letter, Hill is not binding authority on Hockey's claims, as they were State court claims. Zaremba is. Therefore, even with an adverse ruling in a substantially similar case, there also existed binding case law that could have supported Hockey's claims. "Only those actions that any reasonable attorney would agree are totally and completely without merit may form the basis for a malicious prosecution suit." (Zamos, supra, 32 Cal.4th at pp. 970.) "The same standard" applies "to the continuation as to the initiation of a suit." (Ibid.) The Court cannot find that, even with the introduction of the Hill ruling, Hockey's claims were totally and completely without merit.

At most, there is an argument Hockey took approximately 5 months from informing Brighton of intent to dismiss to actually filing the request for dismissal. However, failure to effectuate quick dismissal is not indicative of continuing to pursue litigation without any probable cause. Brighton presents no case law demonstrating failure to dismiss immediately is indicative of malicious prosecution. Therefore, the Court does not find evidence to establish there is a potential this action was brought or continued without probable cause, as a matter of law.

3. Malice

The Court similarly does not find sufficient evidence to establish a potential showing of malice, as required by claims for malicious prosecution. "[M]alice at its core refers to an improper motive for bringing the prior action. As an element of liability it reflects the core function of the tort, which is to secure compensation for harm inflicted by misusing the judicial system, i.e., using it for something other than to enforce legitimate rights and secure remedies to which the claimant may tenably claim an entitlement." (Drummond v. Desmarais (2009) 176 Cal.App.4th 439, 451.) As this Court found the evidence demonstrates the required level of probable cause, indicative of a belief by Hockey and Hockey's counsel that she had a viable claim able to secure the requested remedy, malice must be established upon a showing an affirmative showing of some other form of malice.

" "Suits with the hallmark of an improper purpose" include, but are not necessarily limited to, "those in which: " " . . . (1) the

person initiating them does not believe that his claim may be held valid; (2) the proceedings are begun primarily because of hostility or ill will; (3) the proceedings are initiated solely for the purpose of depriving the person against whom they are initiated of a beneficial use of his property; (4) the proceedings are initiated for the purpose of forcing a settlement which has no relation to the merits of the claim." ' ' " [Citation.] [¶] Evidence tending to show that the defendants did not subjectively believe that the action was tenable is relevant to whether an action was instituted or maintained with malice. [Citation.]' " (Oviedo, supra, 212 Cal.App.4th at pp. 113-114.)

Brighton argues that, because Muse testified he read the Hill opinion when published, then failed to acknowledge Hill for another year, and that all counsel failed to dismiss the suit until December 2023, all Defendants acted with malice, as they forced Brighton to incur additional attorney fees needlessly. However, none of this is indicative of any form of hostility or ill will, intent to deprive Brighton of property, or intent to force a settlement with no relation to the merits of the claim. It also is not indicative of any knowledge of a lack of validity as to the facts or merits of the case, as Hill was non-binding authority. There is no evidence to establish a likelihood of showing Hockey brought her underlying claim with malice.

Absent establishment of the potential to succeed on two of the required three elements for the malicious prosecution claim, the Court grants the anti-SLAPP motion.

C. Attorneys' Fees

The party prevailing on a special motion to strike may seek an attorney fee award through three different avenues: simultaneously with litigating the special motion to strike, by a subsequent noticed motion, or as part of a cost memorandum. (Carpenter v. Jack in the Box Corp. (2007) 151 Cal. App. 4th 454.) Should Moving Defendants wish to pursue such relief, he is directed to file a noticed motion and reserve a hearing through the CRS.

VII. CONCLUSION

Based on the foregoing, Moving

Defendants' special motion to strike Brighton's complaint is GRANTED.

Moving Party is ordered to give notice.

DATED:

August 21, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.

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OVERRULED.

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Objections to Kaufman Decl. ¶ 7 are

OVERRULED.

5.

Objections to Kaufman Decl. ¶ 8 are OVERRULED.

6.

Objection to Kaufman Decl. ¶ 9 is

OVERRULED.

7.

Objections to Kaufman Decl. ¶ 11 are

OVERRULED.

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any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.' [Citation.] If the defendant shows that the cause of action arises from a statement described in clause (1) or (2) of section 425.16, subdivision (e), the defendant is not required to separately demonstrate that the statement was made in connection with a 'public issue.' [Citation.]" (Id.)

"A cause of action is one 'arising from' protected activity within the meaning of section 425.16, subdivision (b)(1) only if the defendant's act on which the cause of action is based was an act in furtherance of the defendant's constitutional right of petition or free speech in connection with a public issue. [Citation.] In deciding whether the 'arising from' requirement is satisfied, 'the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.' [(Code Civ. Proc.. § 425.16(b)(2).)] Whether the 'arising from' requirement is satisfied depends on the 'gravamen or principal thrust' of the claim. [(Episcopal Church Cases (2009) 45 Cal.4th 467, 477, quoting Martinez v. Metabolife International, Inc. (2003) 113 Cal.App.4th 181, 193.)] A cause of action does not arise from protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action. [(Martinez, 113 Cal.App.4th at pg. 188.)]" (Digerati Holdings, LLC, 194 Cal.App.4th at pgs. 883-884.) To show that a claim arises from protected activity under §425.16(b)(1), it is not sufficient to show that the claim "was filed after, or because of, protected activity, or when protected activity merely provides evidentiary support or context for the claim." (Rand Resources, LLC v. City of Carson (2019) 6 Cal.5th 610, 621.) "Rather, the protected activity must 'supply elements of the challenged claim.' [Citation.]" (Id., citations omitted.)

"At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations

of both protected and unprotected activity, the unprotected activity is disregarded at this stage.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 396, emphasis added.)

V. DISCUSSION

Moving

Defendants request the Court

strike the sole cause of action for malicious prosecution as it arises from Moving

Defendants’ protected exercise

of free-speech rights. Pursuant to section 425.16, subdivision (b), a cause of

action against a person arising from the person’s right of petition or free

speech shall be subject to a special motion to strike unless the court

determines the plaintiff has established there is a probability the plaintiff

will prevail on the claim.

A. Statement of Facts

This action concerns

Hockey’s previous claim against Brighton, brought with the assistance of

counsel Defendants. The underlying complaint, filed December 16, 2019, alleged on

October 4, 2018, Brighton employed Hockey as a model for a photography shoot at

a rate of \$3,000.00 per day via Hockey’s modeling agency, LA Models. (Mot., JN

Ex. A.) Brighton issued payment to LA Models over two months later; LA Models

then paid Hockey (Ibid.) Hockey alleged, pursuant to Labor Code 201,

subdivision (a), Hockey was entitled to be paid her wages immediately upon

discharge, as opposed to the reality of waiting more than 30 days for payment. (Ibid.)

Hockey’s complaint alleged the failure to pay was willful and warranted waiting

time penalties in the amount of \$90,000.00, pursuant to Labor Code 203. (Ibid.)

On March 2, 2020, Brighton filed a

cross-complaint against Hockey for declaratory relief and fraud. (Mot., JN Ex. B.)

On April 29, 2020, Hockey filed an anti-SLAPP motion to Brighton’s

cross-complaint; the trial court granted the anti-SLAPP motion. Brighton

appealed the court’s ruling; on September 20, 2021, the Court of appeal

reversed the anti-SLAPP motion, finding Brighton’s fraud cause of action had

the requisite minimal merit.

On October 10, 2023, Brighton filed a motion

for summary judgment as to Hockey’s underlying complaint. Prior to the hearing

on the motion for summary judgment, on December 4, 2023, Hockey voluntarily dismissed her complaint against Brighton, without prejudice. Brighton subsequently dismissed his cross-complaint.

B. Protected Activity

Moving Defendants assert Moving Defendants' activity as to the claim for malicious prosecution is protected, satisfying the first prong of an anti-SLAPP motion, as the claim entirely concerns Moving Defendants' actions in regard to Hockey's previous suit against Brighton.

The Anti-SLAPP statute defines relevant protected activity as follows:

“(1)

any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (§ 425.16, subd. (e).)

Moving Defendants asserts the alleged activity is protected as it concerns actions in underlying litigation, satisfying section 425.16, subdivision (e)(1)-(2). The Court agrees. “By definition, a malicious prosecution suit alleges that the defendant committed a tort by filing a lawsuit...[a]ccordingly, every Court of Appeal that has addressed the question has concluded that malicious prosecution causes of action fall within the purview of the anti-SLAPP statute.” (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728, 735; internal citations omitted.)

Brighton does not contest Moving Defendants' actions are considered protected activity under section 425.16. Therefore, Moving Defendants has met his initial burden of showing the activity satisfies the first prong of section 425.16. The burden to demonstrate the probability of prevailing on these causes of action shifts to Doe.

C. Probability of Prevailing

Under the second prong of the anti-SLAPP analysis, Brighton has the shifted burden of establishing a probability of prevailing on the cause of action for malicious prosecution. (§ 425.16, subd. (b)(3).) A plaintiff “cannot simply rely on his or her pleadings, even if verified,” but must submit “competent, admissible evidence.” (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 480; see also *Morrow v. Los Angeles Unified School District* (2007) 149 Cal.App.4th 1424, 1444.) In evaluating the parties’ submissions, the Court considers the pleadings and admissible evidence presented by both sides, without weighing credibility, and must grant the motion “if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.” (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal. 4th 811, 821 [emphasis original].) The question is whether the plaintiff has presented evidence in opposition to the defendant’s motion that, if believed by the trier of fact, is sufficient to support a judgment in the plaintiff’s favor. (*Zamos v. Stroud* (2004) 32 Cal.4th 958, 965.)

“To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff’s, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice [citations].” (*Lanz v. Goldstone* (2015) 243 Cal.App.4th 441, 458 (quoting *Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50).)

1. Commencement and Termination

It is undisputed that Moving

Defendants, as Hockey’s attorneys, commenced and pursued the underlying action to termination, in Brighton’s favor, upon Hockey requesting the Court dismiss her claims. Malicious prosecution may also include the act of “continuing to prosecute a lawsuit discovered to lack probable cause,” not just commencement. (*Zamos v. Stroud* (2004) 32 Cal.4th 958, 973.) Therefore, this element has been met.

2. Probable Cause

Moving Defendants argue Brighton

cannot establish a lack of probable cause in Moving Defendants bringing a claim for waiting time penalties against Brighton. "Probable cause is a low threshold designed to protect a litigant's right to assert arguable legal claims even if the claims are extremely unlikely to succeed." (*Plumley v. Mockett* (2008) 164 Cal.App.4th 1031, 1047.) " 'The benchmark for [probable cause] is whether any reasonable attorney would have thought the claim was tenable.' " (*Oviedo v. Windsor Twelve Properties, LLC* (2012) 212 Cal.App.4th 97, 114.) " 'The facts to be analyzed for probable cause are those known to the defendant [in the malicious prosecution action] at the time the underlying action was filed.' " (*Walsh v. Bronson* (1988) 200 Cal.App.3d 259, 264.)

Moving Defendants allege that, at

all times, Moving Defendants believed Hockey had a viable claim under various Labor Code sections, as Moving Defendants believed Hockey to be an employee of Brighton that was not paid in a timely fashion. Pursuant to Labor Code section 201, upon discharge of an employee, an employee is entitled to payment of all wages due. If an employer willfully fails to pay these wages, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action is commenced, but not for more than 30 days. (Labor Code § 203.) These sections could not be contravened by private agreement. (Labor Code § 219, subd. (a).)

It is undisputed Brighton did not

pay Hockey directly immediately after the photoshoot. However, Brighton asserted Hockey, via the agreement between LA Models and Brighton, directed Brighton to pay LA Models; Hockey alleges Brighton paid LA Models almost two months after completion of the work. Both case law and statute present potential issues with Brighton's method of payment, regardless of any industry standard or outside agreement. (See *Zaremba v. Miller* (1980) 113 Cal.App.3d Supp. 1, 6 [concluding "Labor Code provisions [200, 201, and 203] express a strong public policy for prompt payment of laborers that may not be undercut by any industry habit or custom to the contrary" and reversing trial court].) LA Models also did not agree with Brighton's characterization of the agreement, as their invoice stated payment was due upon completion of the job, as opposed to two months later.

Parties also disputed whether Hockey

was an employee for purposes of the Labor Code. Moving Defendants believed

Brighton exercised sufficient control over Hockey's actions on the day in question to establish Hockey as Brighton's employee. Zaremba itself established, under certain circumstances, models may be considered employees rather than independent contractors, entitled to immediate payment upon termination. (Zaremba, supra, 113 Cal.App.3d Supp. at p. 5.) The Court finds, based upon the information and case law available at the time of filing Brighton's complaint, Moving Defendants met the low threshold for probable cause.

Brighton argues, however, Moving Defendants continuing to pursue the subject action after the publication of case law allegedly undermining Hockey's case was done without probable cause. On April 22, 2022, the Ninth Circuit published *Hill v. Walmart Inc.* (2022) 32 F.4th 811, in which the appellate court held a defendant who, in good faith, reasonably believed a model to not be an employee was not obligated to make immediate payment to a model upon termination or face waiting time penalties. (Id. at 814.) On July 11, 2023, Hockey's counsel e-mailed Brighton's counsel, stating they intended to dismiss the action in light of the recent *Hill* decision:

"Although that decision is not binding on the court in this matter, we recognize that the court in this case may very well follow the 9th Circuit's holding 1) applying the Borello standard to the determination of employment status in this case rather than the definitions of employment stated in the Martinez decision (which we continue to contend is the applicable employment-determination standard in this case) and 2) applying a subjective standard to the determination of willfulness under Labor Code section 203 with reference to the Borello standard."

(Opp., Stiglitz Decl. ¶ 3, Ex. 2.) Despite asserting in July 2023 that Hockey intended to dismiss her claims, no dismissal was filed. Only after Brighton filed a motion for summary judgment did Hockey actually move to dismiss her claims.

As noted in Moving Defendants' replies and Hockey's counsel's letter, *Hill* is not binding authority on Hockey's claims, as Hockey's claims were State court claims. Zaremba is. Therefore, even with an adverse ruling in a substantially similar case, there also existed binding case law that could have supported Hockey's claims. "Only those actions that any reasonable attorney would agree are totally and completely without merit may

form the basis for a malicious prosecution suit.” (Zamos, *supra*, 32 Cal.4th at pp. 970.) “The same standard” applies “to the continuation as to the initiation of a suit.” (*Ibid.*) The Court cannot find that, even with the introduction of the Hill ruling, Hockey’s claims were totally and completely without merit.

Furthermore,

as noted in Hockey’s reply, the July letter was not to only inform Brighton of Hockey’s intent to dismiss, but to seek mutual dismissal of all claims. (Opp., Stiglitz Decl. ¶ 3, Ex. 2.) The five month gap between the e-mail and the eventual dismissal is consistent with ordinary mutual settlement negotiation. At most, there is an argument Hockey took approximately 5 months from informing Brighton of intent to dismiss to actually filing the request for dismissal. However, failure to effectuate quick dismissal is not indicative of continuing to pursue litigation without any probable cause. Brighton presents no case law demonstrating failure to dismiss immediately is indicative of malicious prosecution. Therefore, the Court does not find evidence to establish there is a potential this action was brought or continued without probable cause, as a matter of law.

3. Malice

The

Court similarly does not find sufficient evidence to establish a potential showing of malice, as required by claims for malicious prosecution. “[M]alice at its core refers to an improper motive for bringing the prior action. As an element of liability it reflects the core function of the tort, which is to secure compensation for harm inflicted by misusing the judicial system, i.e., using it for something other than to enforce legitimate rights and secure remedies to which the claimant may tenably claim an entitlement.” (Drummond v. Desmarais (2009) 176 Cal.App.4th 439, 451.) As this Court found the evidence demonstrates the required level of probable cause, indicative of a belief by Hockey and Hockey’s counsel that she had a viable claim able to secure the requested remedy, malice must be established upon a showing an affirmative showing of some other form of malice.

“ ‘Suits with the hallmark of an improper purpose”

include, but are not necessarily limited to, “those in which: ‘ “ . . . (1) the person initiating them does not believe that his claim may be held valid; (2) the proceedings are begun primarily because of hostility or ill will; (3) the proceedings are initiated solely for the purpose of depriving the person

against whom they are initiated of a beneficial use of his property; (4) the proceedings are initiated for the purpose of forcing a settlement which has no relation to the merits of the claim." " " [Citation.] [¶] Evidence tending to show that the defendants did not subjectively believe that the action was tenable is relevant to whether an action was instituted or maintained with malice. [Citation.]' " (Oviedo, supra, 212 Cal.App.4th at pp. 113-114.)

Brighton argues that, because Muse testified he read the Hill opinion when published, then failed to acknowledge Hill for another year, and that all counsel failed to dismiss the suit until December 2023, all Defendants acted with malice, as they forced Brighton to incur additional attorney fees needlessly. However, none of this is indicative of any form of hostility or ill will, intent to deprive Brighton of property, or intent to force a settlement with no relation to the merits of the claim. It also is not indicative of any knowledge of a lack of validity as to the facts or merits of the case, as Hill was non-binding authority. There is no evidence to establish a likelihood of showing Hockey brought her underlying claim with malice.

Absent establishment of the potential to succeed on two of the required three elements for the malicious prosecution claim, the Court grants the anti-SLAPP motion.

C. Attorneys'

Fees

The party prevailing on a special motion to strike may seek an attorney fee award through three different avenues: simultaneously with litigating the special motion to strike, by a subsequent noticed motion, or as part of a cost memorandum. (Carpenter v. Jack in the Box Corp. (2007) 151 Cal. App. 4th 454.) Should Moving Defendants wish to pursue such relief, he is directed to file a noticed motion and reserve a hearing through the CRS.

VII. CONCLUSION

Based on the foregoing, Moving Defendants' special motion to strike Brighton's complaint is GRANTED.

Moving Party is ordered to give notice.

DATED:

August 21, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.